

1.

CASE #	CASE NAME	HEARING NAME
CVRI2402839	BARTELS VS REGENTS OF THE UNIVERSITY OF CALIFORNIA	MOTION TO STRIKE REGARDING DEFENDANT MUELLER'S REQUEST FOR A PROTECTIVE ORDER

Tentative Ruling:

The motion is denied.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2405945	TREMONT RANCH PROPERTY OWNERS ASSOCIATION VS ORBIS FINANCIAL, LLC	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Art. XX, §§20.1-20.1.7 provide a dispute resolution procedure for disputes between “any Owners, and Declarant, or any director, officer, partner, shareholder, Member, employee, representative, contractor, subcontractor, design professional or agent of the Declarant... arising under this Declaration or relating to the Project, including disputes regarding latent or patent construction defects....” (CC&Rs, §20.1.) The “Declarant” is defined is the CC&Rs as “Stonefield, Inc., (as the Owner of Lots 1, 2, 3, 5 through 8, 11 through 14, 18 and 19)”, various other individuals, and “its successors, and any Person to which it shall have assigned any of its rights hereunder by an express written agreement.” (CC&Rs, §1.19.)

The provisions in the CC&Rs are for a judicial reference, not an arbitration. Judicial reference is, in short, a legal proceeding, while “[a]rbitrations provide an *alternative* method of dispute resolution to legal proceedings. They follow different rules and serve different ends. They are as distinct in their elementary structure as dirt is to water. Mixing the two only produces mud—not the sort of stuff we willingly tread in.” (*National Union Fire Ins. Co. v. Nationwide Ins. Co.* (1999) 69 Cal.App.4th 709, 715 [finding that an order to “binding arbitration with a right of appeal” was a judicial reference because the proceedings conducted were a reference in everything but name].)

Further, they do not apply to Boone Enterprises, SBF Financial, or Pheasant Run and thus plaintiff is not obligated to engage in that procedure as to it. While Orbis, Axios, Emerald Bay and SRDP were property owners, the dispute as to them does not arise out of the CC&Rs but rather out of the Repair Agreement, which moving parties do not contend contains an arbitration or reference clause. The claims as against Martin Boone do arise out of his status as a (former) officer of Tremont Ranch. However, because the claims against him are intertwined with the claims against the other

defendants, the risk of inconsistent rulings/verdicts and interests of judicial economy weigh in favor of the court exercising its discretion to decline to enforce the alternative dispute resolution process as against him.

The petition is denied.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2507156	COOPER VS COUNTY OF RIVERSIDE	DEMURRER

Tentative Ruling:

Per the parties' meet-and-confer, Defendant no longer challenges the sufficiency of the pleadings as to the following causes of action: 1) Discrimination based on race, ethnicity, ancestry, color, and/or national origin in violation of FEHA only; 3) Retaliation; 4) Failure to Prevent Discrimination, Harassment or Retaliation; and 7) Whistleblower Retaliation.

1st Cause of Action – Discrimination based on disability

Government Code section 12940, subdivision (a) prohibits an employer from discriminating against an employee based on a protected characteristic. In order to establish a claim of discrimination, a plaintiff must prove: (1) they are in a protected class; (2) an adverse employment action was taken against them; (3) at the time of the adverse action they were satisfactorily performing their job; and (4) some other circumstance suggesting discriminatory motive. (*Guz v. Bechtel* (2000) 24 Cal.4th 317, 355.)

In the meet and confer declaration, defense counsel concedes Plaintiff properly alleges the "discrimination based on race, ethnicity, ancestry, color, and/or national origin in violation of FEHA only, not discrimination based on disability." (Castorena Decl., ¶ 9.) A general demurrer does not lie to only part of a cause of action. (*Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.) If there are sufficient allegations to entitle plaintiff to relief, other allegations cannot be challenged by general demurrer. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167 [disapproved on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 948.]) Thus, where there is a substantive defect affecting only a portion of a claim, the proper challenge is by motion to strike. (*PH II, Inc. v. Sup. Ct.* (1995) 33 Cal.App.4th 1680, 1682-1683 [legal malpractice claim based on several incidents of alleged malpractice, one of which was not actionable as a matter of law].)

Defendant also demurs to this claim on the ground of uncertainty. Generally, each version of the facts or each legal theory should generally be pleaded in a separate cause of action in the complaint. (C.C.P., § 430.10(f); see *Campbell v. Rayburn* (1954) 129 Cal.App.2d 232, 235.) However, "demurrers for uncertainty are disfavored, and are